



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35624216

Date: JAN. 15, 2025

Appeal of Fresno, California Field Office Decision

Form N-600, Application for a Certificate of Citizenship

The Applicant seeks a Certificate of Citizenship to reflect that she derived U.S. citizenship from her U.S. citizen father under section 320 of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1431. The Director of the Fresno, California Field Office denied the Applicant's Form N-600, Application for a Certificate of Citizenship, concluding that she did not establish her eligibility for derivative citizenship. This matter is before us on appeal, which we review de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will remand the matter to the Director for entry of a new decision consistent with the following analysis.

To determine whether a person derived citizenship after their birth abroad, we apply the law in effect when "the critical events giving rise to eligibility occurred." *Minasyan v. Gonzales*, 401 F.3d 1069, 1075 (9th Cir. 2005). As the Applicant is under 18 years of age, we consider her citizenship claim under section 320 of the Act (as in effect since 2001), which provides in pertinent part that a child born outside of the United States automatically becomes a U.S. citizen when all of the following conditions have been met: (1) at least one parent of the child is a U.S. citizen, whether by birth or naturalization; (2) the child is under the age of eighteen years when all of the conditions are met; and (3) the child is residing in this country in the legal and physical custody of the citizen parent pursuant to a lawful admission for permanent residence. *See also* 8 C.F.R. § 320.2(a). Because the Applicant was born abroad, she is presumed to be a noncitizen and has the burden of establishing her citizenship by a preponderance of credible evidence. *Matter of Baires-Larios*, 24 I&N Dec. 467, 468 (BIA 2008); *see also Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010).

The record reflects that the five-year-old Applicant was born in 2019 in Mexico to a U.S. citizen father and a Mexican mother, who later married in 2020. At age four in 2024, she was admitted into the United States as a lawful permanent resident (LPR) based on an approved visa petition her father filed for her. The Applicant submitted below her birth certificate listing both parents' names; her father's Certificate of Citizenship (issued in 2018, indicating that he became a citizen at age 15); her parents' marriage certificate; proof of her U.S. immigrant visa and LPR admission¹; her parents' joint 2023 tax return claiming her and her sister as dependents and listing the family address in California; as

¹ The Applicant's older sister and their mother were also granted their respective LPR status on the same date as the Applicant based on approved immigrant visa petitions her U.S. citizen father also filed for them, and the Applicant's sister also filed a Form N-600, seeking derivative U.S. citizenship from their father.

well as the father's Form W-2 listing the same family address. On appeal, the Applicant asserts, as she did below, that she is seeking a Certificate of Citizenship under section 320 of the Act, and maintains that she has met all the requisite conditions to derive U.S. citizenship through her father, including the condition that she is residing in the United States in the legal and physical custody of her citizen parent. The Applicant further avers that she and her sister continue to reside together with their both parents in California since they came to this country, and also submits related new evidence on appeal, including her immunization record and benefits verification letter listing the same family address with "Current Household Details" indicating that she and her sister reside with their both parents in California.

The Director's decision denying the Form N-600 concluded that "[a]fter a thorough review of [the] application and supporting documents, and information in the record," the Applicant did not establish her eligibility for a Certificate of Citizenship. However, other than this conclusion and general reference to section 320 of the Act, the Director did not provide any findings or analysis. Further, the Director also cited section 322 of the Act for those who reside outside the United States, circumstances which may require a different application (Form N-600K), without any explanation of its relevance or pertinent findings applicable to this case. The Director did not issue a request for evidence, otherwise address any evidentiary shortcomings, or explain why the Applicant did not meet her burden of establishing her eligibility for a Certificate of Citizenship under section 320 of the Act, which as we noted above is applicable to the Applicant's citizenship claim, or under section 322 of the Act.

The Director's decision therefore does not reflect a reasoned consideration of the Applicant's derivative citizenship claim and related evidence for us to conduct a meaningful appellate review. *See* 8 C.F.R. § 103.3(a)(1)(i) (stating that when denying a benefit, the Director *shall* explain the specific reasons for denial); 8 C.F.R. § 341.5(d) (providing that if a request for Certificate of Citizenship is denied, "the applicant *will be furnished the reasons for denial*"); *Matter of A-P-*, 22 I&N Dec. 468, 474, 478 (BIA 1999) (holding that a decision should reflect "the substantive completeness of the decision" and *must* accurately summarize the relevant facts, reflect analysis of the applicable statutes, regulations, and legal procedures, and clearly set forth legal conclusions); *see also Matter of M-P-*, 20 I&N Dec. 786, 787-78 (BIA 1994) (holding that the reasons for a denial must be clear to allow the affected party a meaningful opportunity to challenge the decision on appeal).

We will therefore withdraw the Director's decision and remand the matter to the Director to determine in the first instance whether the record, including the Applicant's new evidence on appeal noted above, establishes her eligibility for a Certificate of Citizenship under section 320 of the Act (or section 322 of the Act, if applicable). In the event the record does not establish eligibility, the Director should provide sufficient reasoning to support that conclusion.²

ORDER: The decision of the Director is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.

² If the Director determines that section 322 of the Act may apply to the Applicant's derivative citizenship claim, the Director should address that issue and clearly provide related findings and reasoned analysis.